

MASTER SERVICES AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Master Services Agreement ("**Agreement**" or "**MSA**") is entered into on **24 September 2026** ("**Effective Date**").

BETWEEN

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India ("**Client**");

AND

SECUREBRIDGE ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India ("**Service Provider**").

The Client and Service Provider are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. PURPOSE AND STRUCTURE

The Client wishes to engage the Service Provider to provide certain technology, software-development, analytics, implementation, maintenance and related professional services.

This Agreement establishes the general terms governing such services.

Specific services, deliverables, timelines, fees and project requirements shall be set out in one or more **Statements of Work ("SOWs")** executed by the Parties.

Each SOW shall form part of this Agreement.

2. DEFINITIONS

For purposes of this Agreement:

2.1 "Services"

means the software development, implementation, integration, analytics, maintenance, support, consulting and other services described in an applicable SOW.

2.2 "Deliverables"

means the reports, software, configurations, documentation, designs, code, dashboards, models or other work product expressly identified as deliverables in an SOW.

2.3 "Client Data"

means data, information, records and materials provided by or on behalf of the Client to the Service Provider for performance of the Services.

2.4 "Service Provider Materials"

means tools, methodologies, frameworks, know-how, templates, utilities, software components and other materials owned or developed by the Service Provider independently of the Services.

2.5 "Confidential Information"

has the meaning given to it under the confidentiality provisions of this Agreement.

2.6 "SOW"

means a written Statement of Work signed by authorised representatives of both Parties describing a specific engagement.

3. STATEMENTS OF WORK

Each SOW shall, as applicable, specify:

- description and scope of Services;
- Deliverables;
- milestones;
- project timeline;
- dependencies;
- acceptance criteria;
- Service Levels;
- fees and payment terms;
- Client responsibilities;
- Service Provider responsibilities; and
- any project-specific terms.

No SOW shall become effective unless signed by authorised representatives of both Parties.

In the event of a conflict between this Agreement and an SOW, this Agreement shall prevail unless the SOW expressly identifies the specific provision of this Agreement that it is intended to override.

4. PERFORMANCE OF SERVICES

The Service Provider shall:

- a. perform the Services professionally and in accordance with applicable industry standards;
- b. provide appropriately qualified personnel;
- c. perform the Services in accordance with the applicable SOW;
- d. meet agreed milestones and delivery dates, subject to Client dependencies and approved changes; and

e. promptly notify the Client of any material issue likely to affect the scope, cost or timeline of the Services.

The Service Provider shall remain responsible for the management and supervision of its personnel.

5. CLIENT RESPONSIBILITIES

The Client shall:

- a. provide information, access and materials reasonably required for performance of the Services;
- b. provide timely feedback and approvals;
- c. designate appropriate personnel for project coordination;
- d. ensure that Client Data supplied to the Service Provider may lawfully be used for the relevant Services; and
- e. comply with its responsibilities specified in the applicable SOW.

The Service Provider shall not be responsible for delays directly caused by the Client's failure to perform its agreed dependencies.

6. CHANGE CONTROL

Either Party may request a change to the scope, Deliverables, timelines or assumptions contained in an SOW.

A requested change shall not become binding unless documented through a written **Change Order** or other written approval agreed by the Parties.

Where a proposed change materially affects:

- fees;
- project timelines;
- resource requirements;
- Deliverables; or
- technical requirements,

the Service Provider shall provide reasonable details of the expected impact before implementation.

The Service Provider shall not charge additional fees for a change unless such charges have been approved in writing.

7. ACCEPTANCE OF DELIVERABLES

Where an SOW contains acceptance criteria, the Client shall review the applicable Deliverable within **10 business days** after delivery.

The Client may:

- a. accept the Deliverable;

- b. reject the Deliverable by identifying specific material deficiencies against the agreed acceptance criteria; or
- c. request reasonable corrections where the Deliverable does not meet the agreed criteria.

The Service Provider shall correct valid deficiencies within a reasonable period and resubmit the Deliverable for acceptance.

A Deliverable shall not be deemed rejected merely because the Client has requested minor changes that do not constitute a failure to satisfy the agreed acceptance criteria.

8. FEES AND PAYMENT

The Client shall pay the fees specified in the applicable SOW.

Unless otherwise stated in an SOW:

- invoices shall be issued monthly;
- undisputed invoices shall be payable within **30 days** of receipt;
- applicable taxes shall be charged in addition to the fees; and
- the Client may withhold taxes where required by applicable law.

The Client shall notify the Service Provider of any disputed invoice within **10 business days** of receipt, specifying the disputed amount and reason.

The Parties shall cooperate in good faith to resolve disputed invoices.

9. EXPENSES

The Client shall reimburse reasonable and pre-approved out-of-pocket expenses incurred by the Service Provider in connection with the Services.

No material expense shall be reimbursable unless:

- a. expressly permitted under the applicable SOW; or
 - b. approved in writing by the Client in advance.
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10. INTELLECTUAL PROPERTY

10.1 Pre-existing Intellectual Property

Each Party shall retain all right, title and interest in intellectual property owned or developed by it before the Effective Date.

10.2 Client Materials

The Client retains ownership of Client Data, Client trademarks, business information and other materials supplied by the Client.

The Client grants the Service Provider a limited, non-exclusive right to use Client Materials solely to perform the Services.

10.3 Deliverables

Subject to full payment of applicable fees, ownership of Deliverables specifically created for the Client and expressly identified in an SOW as Client-owned work product shall vest in the Client upon creation or payment, as specified in the applicable SOW.

10.4 Service Provider Materials

The Service Provider retains ownership of its pre-existing tools, methodologies, frameworks, generic software components, know-how and reusable technologies.

To the extent such Service Provider Materials are incorporated into a Deliverable, the Service Provider grants the Client a non-exclusive, perpetual, worldwide licence to use such materials solely to the extent necessary for the Client to use the applicable Deliverable.

11. OPEN-SOURCE SOFTWARE

The Service Provider shall not knowingly incorporate open-source software into a Deliverable in a manner that would require the Client to disclose proprietary source code or license proprietary components under terms inconsistent with the Client's intended commercial use, without the Client's prior written approval.

Upon reasonable request, the Service Provider shall identify material open-source components incorporated into the Deliverables.

12. CONFIDENTIALITY

Each Party may receive Confidential Information belonging to the other Party.

The receiving Party shall:

- use Confidential Information only for purposes connected with this Agreement;
- protect it using reasonable safeguards;
- disclose it only to persons with a legitimate need to know; and
- ensure that such persons are subject to appropriate confidentiality obligations.

Confidentiality obligations shall not apply to information that:

- a. is publicly available without breach;
- b. was lawfully known before disclosure;
- c. is independently developed without use of Confidential Information; or
- d. is lawfully received from a third party without confidentiality restrictions.

These obligations shall survive termination of this Agreement for **three (3) years**, except that trade secrets shall remain protected for so long as they qualify as trade secrets under applicable law.

13. DATA PROTECTION AND SECURITY

Where the Service Provider processes Client Data containing personal data, the Parties shall comply with applicable data-protection laws.

The Service Provider shall maintain reasonable technical and organisational security measures appropriate to the nature of the data processed.

Such measures shall include, where appropriate:

- access controls;
- authentication mechanisms;
- encryption;
- secure data transmission;
- vulnerability management;
- incident response procedures; and
- appropriate personnel controls.

The Service Provider shall notify the Client without undue delay upon becoming aware of a material security incident affecting Client Data.

Where required, the Parties shall enter into a separate data-processing agreement.

14. PERSONNEL AND SUBCONTRACTORS

The Service Provider may use employees and contractors to perform the Services.

The Service Provider shall remain responsible for the acts and omissions of its personnel relating to the Services.

The Service Provider shall not subcontract a material portion of the Services to a third party without prior written notice to the Client.

Where the Client reasonably objects to a proposed subcontractor on legitimate security, compliance or conflict-of-interest grounds, the Parties shall discuss an appropriate alternative.

15. WARRANTIES

The Service Provider represents and warrants that:

- a. it has authority to enter into this Agreement;
- b. the Services shall be performed with reasonable skill and care;
- c. Deliverables shall materially conform to the specifications expressly stated in the applicable SOW;
- d. it shall comply with applicable laws in performing the Services; and
- e. to its knowledge, the Deliverables created specifically by the Service Provider shall not knowingly infringe a third party's intellectual property rights.

The Client represents that it has the necessary rights to provide Client Data and materials to the Service Provider for the agreed Purpose.

16. WARRANTY REMEDY

If a Service or Deliverable materially fails to conform to an applicable warranty, the Service Provider shall, as its primary remedy, use reasonable efforts to:

- a. correct the non-conformity;
- b. re-perform the affected Services; or
- c. where correction or re-performance is commercially unreasonable, provide an appropriate fee adjustment as agreed by the Parties.

This remedy shall not apply where the failure results from unauthorised modification, misuse or circumstances outside the Service Provider's reasonable control.

17. INDEMNIFICATION

17.1 Service Provider Indemnity

Subject to the limitations of this Agreement, the Service Provider shall defend and indemnify the Client against third-party claims alleging that a Deliverable created by the Service Provider specifically for the Client infringes such third party's intellectual property rights.

17.2 Client Indemnity

Subject to the limitations of this Agreement, the Client shall defend and indemnify the Service Provider against third-party claims arising from the Client's unlawful use of Client Data or materials supplied to the Service Provider.

17.3 Indemnification Procedure

The indemnified Party shall:

- promptly notify the indemnifying Party of the claim;
- provide reasonable cooperation;
- allow the indemnifying Party reasonable control of the defence and settlement.

No settlement may impose an admission of liability or material obligation on the indemnified Party without its prior written consent.

18. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, neither Party shall be liable for indirect, incidental, special, punitive or consequential damages, including loss of profits, revenue or anticipated savings.

Subject to the exclusions below, each Party's aggregate liability arising out of or relating to this Agreement shall not exceed the total fees paid or payable under the applicable SOW during the **12 months preceding the event giving rise to the claim**.

The liability cap shall not apply to:

- fraud or wilful misconduct;
 - death or personal injury to the extent liability cannot lawfully be excluded;
 - unauthorised use or disclosure of Confidential Information;
 - infringement or misappropriation of intellectual property rights; or
 - liabilities that cannot legally be limited.
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19. INSURANCE

During the term of this Agreement, the Service Provider shall maintain insurance appropriate to the nature and scale of the Services, including where commercially appropriate:

- professional liability/errors and omissions insurance;
- commercial general liability insurance; and
- cyber or technology liability insurance.

Upon reasonable request, the Service Provider shall provide evidence of applicable insurance coverage.

20. AUDIT AND COMPLIANCE

Where reasonably necessary to verify compliance with material contractual or security obligations, the Client may request relevant compliance documentation from the Service Provider.

Any audit shall:

- be conducted on reasonable prior notice;
- occur during normal business hours;
- minimise disruption to the Service Provider's operations; and
- protect confidential information and security-sensitive information.

The Client shall not have unrestricted access to the Service Provider's systems or information unrelated to the Services.

21. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and remain effective for **three (3) years**, unless terminated earlier in accordance with this Agreement.

Either Party may terminate this Agreement for convenience by providing **30 days' written notice**, unless an SOW expressly provides otherwise.

Either Party may terminate this Agreement immediately upon written notice if the other Party:

- a. commits a material breach and fails to cure it within **30 days** after receiving written notice;

- b. becomes insolvent or enters liquidation, subject to applicable law; or
- c. engages in unlawful conduct materially affecting the other Party.

Termination of the MSA shall not automatically terminate an SOW already in effect unless expressly stated otherwise.

22. EFFECT OF TERMINATION

Upon termination:

- a. the Service Provider shall cease performing terminated Services;
- b. the Client shall pay undisputed fees properly due for Services performed up to the effective termination date;
- c. each Party shall return or destroy the other Party's Confidential Information as required under the Agreement; and
- d. provisions intended by their nature to survive termination shall remain effective.

Where an SOW is terminated for the Service Provider's uncured material breach, the Parties shall cooperate reasonably to transition affected Services to the Client or an alternative provider.

23. FORCE MAJEURE

Neither Party shall be liable for delay or failure to perform obligations caused by circumstances beyond its reasonable control, including natural disasters, war, governmental restrictions, widespread telecommunications failures or other comparable events.

The affected Party shall:

- promptly notify the other Party;
- take reasonable steps to mitigate the effects; and
- resume performance as soon as reasonably practicable.

Force majeure shall not excuse payment obligations for Services already performed.

24. NON-SOLICITATION

During the term of this Agreement and for **12 months thereafter**, neither Party shall knowingly solicit for employment personnel of the other Party who were materially involved in performing the Services.

This restriction shall not apply to:

- general recruitment advertisements;
 - unsolicited applications; or
 - candidates who independently approach a Party without targeted solicitation.
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25. PUBLICITY

Neither Party shall use the other Party's name, trademarks or logos in public announcements, marketing materials or promotional activities without prior written consent.

The Service Provider shall not identify the Client as a customer in promotional materials without the Client's prior written approval.

26. RECORDS AND DOCUMENTATION

The Service Provider shall maintain records reasonably necessary to demonstrate performance of the Services and compliance with applicable contractual obligations.

Where required under an SOW, relevant project documentation shall be made available to the Client upon reasonable request.

27. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the **laws of India**.

Subject to the dispute-resolution provisions below, the courts having competent jurisdiction at **Bengaluru, Karnataka** shall have jurisdiction over disputes arising from this Agreement.

28. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith negotiations between senior representatives.

If the dispute remains unresolved for **30 days**, either Party may refer the dispute to arbitration in accordance with the **Arbitration and Conciliation Act, 1996**.

Unless otherwise agreed:

- the seat of arbitration shall be Bengaluru, India;
- the proceedings shall be conducted in English; and
- the tribunal shall consist of a sole arbitrator mutually appointed by the Parties.

Nothing in this clause prevents either Party from seeking urgent interim or injunctive relief from a competent court.

29. ASSIGNMENT

Neither Party may assign this Agreement without the prior written consent of the other Party, except to an affiliate or successor entity in connection with a merger, restructuring or sale of substantially all relevant assets, provided the assignee assumes the applicable obligations.

30. INDEPENDENT CONTRACTORS

The Parties are independent contractors.

Nothing in this Agreement creates a partnership, joint venture, agency, employment relationship or fiduciary relationship between the Parties.

Neither Party may bind the other without express written authority.

31. NOTICES

Formal notices under this Agreement shall be made in writing and delivered by recognised courier, registered post or email to the authorised contact details designated by each Party.

Each Party shall promptly notify the other of any change to its notice details.

32. ENTIRE AGREEMENT

This Agreement, together with its SOWs and other documents expressly incorporated by reference, constitutes the entire agreement between the Parties concerning the Services.

It supersedes prior discussions, proposals and understandings relating to its subject matter.

33. AMENDMENTS

Any amendment to this Agreement must be made in writing and signed by authorised representatives of both Parties.

An amendment to an individual SOW shall not automatically amend the MSA unless expressly stated.

34. SEVERABILITY

If any provision is determined to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

The Parties shall endeavour to replace the affected provision with a valid provision that most closely reflects the original commercial intention.

35. WAIVER

Failure to exercise a contractual right shall not constitute a waiver of that right.

Any waiver must be expressly provided in writing.

36. COUNTERPARTS AND ELECTRONIC EXECUTION

This Agreement may be executed in counterparts.

Electronic signatures and electronically exchanged copies may be used to the extent permitted by applicable law.

Each executed counterpart shall constitute an original, and all counterparts together shall constitute one instrument.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement through their duly authorised representatives.

FOR MEDINOVA TECHNOLOGIES PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

FOR SECUREBRIDGE ANALYTICS PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

